

The court informed Defendant that Plaintiff had filed a motion for default judgment transferring title pursuant to a purchase and sale agreement, that the hearing was set for October 2, 2026, and that Defendant's opposition papers were due to be filed and served September 18, 2026.

6. 9:00 AM CASE NUMBER: C25-03645
CASE NAME: ROLNARD CLEARY VS. GLORIA CARBALLO
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED COMPLAINT**
FILED BY: CLEARY, ROLNARD S
TENTATIVE RULING:

The unopposed motion to file a Second Amended Complaint is **granted**. Plaintiff shall separately file the Second Amended Complaint within 15 days of this August 14, 2026 order.

7. 9:00 AM CASE NUMBER: C26-00103
CASE NAME: RODRIGO GARCIA VS. FIGUEROA TANK LINES INC.,
HEARING ON DEMURRER TO: COMPLAINT - CON'TD PER TR OF 6/26/26
FILED BY: SAMSARA, INC.,
TENTATIVE RULING:

Defendant Samsara Inc.'s Demurrer to Plaintiff Rodrigo Garcia's Complaint, First, Third and Fourth Cause of Action, is **sustained with leave to amend**. Defendant shall prepare the order and file and serve notice of entry of order. Plaintiff shall have 30 days from service of notice of entry of order in which to file an amended complaint.

Background and Allegations of the Complaint

Rodrigo Garcia was hired by Figueroa Tank Lines Inc. as a fuel truck driver on or about December 1, 2024. (Plf.'s January 9, 2026 Complaint ¶ 8.) His duties included operating fuel tanker trucks, performing pre- and post-trip safety inspections, loading and unloading fuel, complying with DOT regulations, and ensuring the safe transport of hazardous materials. (Id. ¶ 9.) Because he transported highly flammable and dangerous materials, his position carried heightened safety obligations, and he was trained and understood that drivers have an independent duty to refuse unsafe equipment, report mechanical defects, and decline to operate vehicles posing a risk to public safety. (Id. ¶ 10.)

Beginning within the first several months of his employment, Plaintiff identified and reported recurring safety issues with Figueroa's fleet to management, including owner Marco Figueroa and his son Kevin Figueroa. (Compl. ¶ 11.) These included tires with visible damage or slash marks, inadequate tire pressure and air leaks, missing antifreeze and overheating risks, mechanical defects rendering trucks unsafe for operation, and failure to timely repair trucks placed out of service. (Ibid.) Management dismissed Plaintiff's concerns, accused him of exaggerating safety risks, pressured him to continue driving, and subjected him to verbal abuse and ridicule, including telling him to "suck it up." (Id. ¶ 12.) Plaintiff reasonably believed that operating unsafe fuel tankers violated DOT regulations, California workplace safety laws, and fundamental public safety principles. (Id. ¶ 13.)

Plaintiff's assigned often required 12-14 hour shifts, leaving insufficient time for legally compliant meal and rest breaks. (Compl. ¶ 14.) He repeatedly complained to management that the volume of

assigned deliveries made it impossible to take required breaks without risking DOT hour violations or failing to complete assigned routes. (*Id.* ¶ 15.) He informed management, including Marco Figueroa, that he was being forced to skip or delay meal and rest breaks in violation of California law. These complaints were ignored, dismissed, or met with hostility. (*Id.* ¶ 16.)

During his initial months of employment Plaintiff complained to management that he had been misled regarding his pay. He had been told during the hiring process he would be paid \$31 per hour during training and \$37 per hour thereafter, but was paid only \$25 per hour during training and never received the promised \$37 rate. When he raised this with Figueroa's owner Marco Figueroa, the owner questioned his masculinity and refused to honor the agreed pay. (Compl. ¶ 17.)

Plaintiff observed pornographic calendars depicting nude women displayed inside company trucks. In or around June 2025 he complained to Kevin Figueroa about the presence of these materials and expressed concern that they created a hostile and sexually charged work environment in violation of Figueroa's written harassment policy and FEHA. Management laughed at him, dismissed his concerns, stated words to the effect that he was in an industry full of men and should expect it, conducted no investigation and took no corrective action. (Compl. ¶ 18.)

In or around May 2025, Figueroa, in conjunction with Samsara, installed forward-facing and cabin-facing cameras in its fleet. Figueroa distributed written policies stating the cameras were intended primarily for accident investigation and safety purposes, were not to be used for routine monitoring of employee performance, were not normally active, and were subject to strict limits on access, retention, and use. (Compl. ¶ 19.) In practice, Defendants used the Samsara system to engage in continuous and covert monitoring of drivers through AI-assisted video analysis, generating so-called "distraction incidents" unrelated to accidents or external safety events. Samsara system's AI independently analyzed driver behavior in real time, identified conduct it characterized as distracted driving or policy violations, and automatically flagged these incidents for employer review without meaningful human oversight or verification. (*Id.* ¶ 20.)

Plaintiff became aware that in-cab footage, driver data, and AI-generated incident reports were accessible to multiple individuals within the Figueroa, including coworkers and non-supervisory personnel, through a shared Samsara portal displaying sensitive personal information including driver's license numbers, home addresses, phone numbers, and video footage of drivers inside company vehicles. Figueroa's owner routinely left himself logged into the portal, allowing other employees to access this data without restriction. (Compl. ¶ 21.) Plaintiff complained to management that the surveillance practices violated his privacy, exceeded the scope of the stated policies, and were potentially unlawful, and informed management that he intended to consult an attorney regarding the legality of the surveillance practices. (*Id.* ¶ 22.)

Following these complaints, Plaintiff was subjected to increased scrutiny, hostility, and discipline, and management began characterizing him as disrespectful or difficult for insisting on compliance with safety and legal standards. (Compl. ¶ 23.)

On or about August 1, 2025, Figueroa issued Plaintiff a written warning alleging he had used a cellphone while driving and covered the in-cab camera. The warning was characterized as a "final warning" and stating that Plaintiff would be terminated if he did it again. Plaintiff refused to sign the write-up, objected that the surveillance practices underlying the discipline violated his privacy rights

and may have been unlawful, informed Kevin Figueroa that he intended to consult an attorney before signing the warning, stated he was too stressed to continue driving that day, and left work to seek legal advice. (Compl. ¶ 24.)

Three days later, on or about August 4, 2025, Figueroa terminated Plaintiff's employment, stating that his cellphone use and refusal to sign the write-up justified discharge. (Compl. ¶ 25.) Plaintiff alleges on information and belief that other drivers engaged in similar or identical conduct, including cellphone use while driving, without being terminated or subjected to comparable discipline, and "Defendants" selectively enforced workplace policies against him because of his protected complaints. (*Ibid.*)

On or about August 16, 2025, Garcia submitted a written complaint identifying discrepancies in his final paycheck, including unpaid work time and unreimbursed business expenses in violation of Labor Code sections 201 and 2802. Defendant responded with hostility and unfounded accusations of misconduct, including falsely alleging that Plaintiff had trespassed on company property. (Compl. ¶ 26.) Plaintiff alleges his termination was in retaliation for repeatedly reporting and opposing practices that he reasonably believed to be violation of federal and state laws. (*Id.* at ¶ 27.)

The complaint asserts four causes of action: (1) retaliation under Labor Code section 1102.5 (Figueroa and Samsara); (2) FEHA retaliation for complaints regarding sexually explicit materials in company vehicles (Figueroa only); (3) wrongful termination in violation of public policy (Figueroa and Samsara); and (4) unfair business practices under Business and Professions Code section 17200 (Figueroa and Samsara).

On March 4, 2026, Samsara filed the instant demurrer to the first, third, and fourth causes of action for failure to state facts sufficient to constitute a cause of action. Regarding the retaliation claims (first and third causes of action), Samsara argues that Plaintiff was employed by Figueroa, that Samsara did not participate in or control any adverse employment action, and that Samsara lacked knowledge of Plaintiff's protected activities. Samsara argues the third cause of action fails derivatively of the first, and that the fourth cause of action fails because Plaintiff cannot establish an unlawful, unfair, or fraudulent business practice by Samsara.

On June 9, 2026, Plaintiff filed an opposition. He argues the demurrer should be overruled or, alternatively, that leave to amend should be granted.

Meet and Confer

Code of Civil Procedure section 430.41 requires that before the filing of a demurrer the moving party "shall meet and confer in person or by telephone" with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (*Id.*, § 430.41(a)(2).) Thereafter, the moving party must file and serve a declaration detailing their meet and confer efforts. (*Id.*, § 430.41(a)(3).)

Defendant submits a declaration counsel who attests the parties met and conferred as required by the code. (See Farr Decl. ¶¶ 2-4.)

Legal Standard

The standard for construing a complaint on demurrer is long-settled: "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed. [Citation.] Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation.]" (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217,1227.)

First Cause of Action for Retaliation in Violation of Cal. Labor Code § 1102.5

Labor Code section 1102.5(b) protects employees who disclose information disclosing a violation of state or federal law to a government agency or internal supervisor, providing that "[a]n employer, or any person acting on behalf of the employer, shall not retaliate against an employee" for making such a disclosure (Cal. Lab. Code § 1102.5(b), emphasis added).

Samsara relies on *Dawson v. Caregard Warranty Service, Inc.* (C.D. Cal. 2024) 2024 U.S. Dist. LEXIS 33737 to argue that civil liability under section 1102.5 is limited to direct employers (in this case, meaning Figueroa).

That reliance is misplaced. Dawson involved claims against a CEO and corporate president sued in their individual capacities, and the court held that individual supervisors were not liable under section 1102.5 based on the policy considerations articulated in *Reno v. Baird* (1998) 18 Cal.4th 640 and *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158. Those decisions were grounded in policy reasons unique to supervisory employees, such as avoiding personal financial liability over routine management decisions. (*Reno*, at 651; *Jones*, at 1167.)

Dawson did not consider or decide whether a corporate business-entity agent performing delegated employer functions is subject to section 1102.5. However, in *Raines v. U.S. Healthworks Medical Group* (2023) 15 Cal.5th 268 the California Supreme Court addressed that issue in the analogous context of the FEHA and held that business-entity agents can be held liable.

In *Raines*, the Court answered a certified question from the Ninth Circuit regarding FEHA's definition of "employer," which, like Labor Code section 1102.5(b), includes "any person acting as an agent of an employer, directly or indirectly" (Gov. Code § 12926(d).) The *Raines* plaintiffs received job offers conditioned on passing pre-employment medical screenings conducted by U.S. Healthworks Medical Group (USHW), a business contracted by prospective employers. USHW required applicants to complete a health history questionnaire asking invasive and irrelevant questions (including inquiries about venereal disease, mental illness, and menstrual history), and terminated the plaintiff's exam when she refused to answer a question regarding her last menstrual period, causing her conditional job offer to be revoked.

USHW argued that under *Reno* and *Jones*, an agent could never be held liable as an employer under statutory employment laws. The Court rejected the defense, holding that an employer's business-

entity agents can be held liable under the FEHA in appropriate circumstances when the agent has at least five employees and carries out FEHA-regulated activities on behalf of an employer. (*Raines*, 15 Cal.5th at 289.) The Court noted that a business entity that contracts to perform traditional employment functions incurs its own obligation to comply with worker-protection laws. (*Id.* at 290.)

Federal courts applying analogous federal statutes have reached the same conclusion regarding automated employment technology. In *Mobley v. Workday, Inc.* (N.D. Cal. 2024) 740 F.Supp.3d 796, District Court held that an AI software vendor could be directly liable as an agent under federal anti-discrimination law because employers delegated traditional hiring functions to the software. In evaluating agent status, *Mobley* distinguished between passive software tools and active decision-making systems. (*Id.* at 808.) A vendor providing a passive tool, such as a spreadsheet used to organize data or an email system, does not act as an agent because the tool itself does not participate in the employment determination. (*Ibid.*) In contrast, because Workday's software actively participated in the decision-making process by evaluating applicants and executing rejection decisions, it qualified as an agent. (*Id.* at 807–808.)

Plaintiff alleges that Figueroa delegated to Samsara the traditional employer task of continuously monitoring, scoring, and generating evaluative determinations of driver misconduct, and that Samsara's AI system independently classified behavior as reportable violations that formed the basis for discipline. (Compl. ¶ 33.) Plaintiff has adequately alleged that Samsara acted as an agent under section 1102.5(b) by performing delegated employment functions.

Though Samsara might be considered an Figueroa's agent for purposes of liability, how the Court rules on the issue is not dispositive. Agency status addresses who may be sued, but it does not relieve Plaintiff of the obligation to plead facts showing that Samsara engaged in retaliation. As against Samsara, the first cause of action (whistleblower retaliation under Labor Code section 1102.5) and third cause of action (wrongful termination in violation of the public policy) have the same elements. To state either claim, Plaintiff must allege facts showing that: (1) he engaged in a protected activity (i.e., the disclosure of a violation of state or federal law), (2) Samsara subjected him to an adverse employment action, and (3) a causal link exists between the two. (*Manavian v. Department of Justice* (2018) 28 Cal.App.5th 1127, 1141.)

Here, Plaintiff does not allege facts to show that Samsara subjected Plaintiff to an adverse employment action, as it is undisputed that Figueroa terminated his employment. While Plaintiff argues that Samsara's reports caused his termination, the Complaint actually alleges that those reports provided pretextual cover for Figueroa's own retaliatory decision. (See, e.g., Compl. ¶¶ 25, 27, 37, 50, 56.)

Plaintiff also fails to plead facts showing Samsara's knowledge of protected activity. While Plaintiff alleges he made various complaints, they were all to Figueroa management. Plaintiff argues that Samsara knew of his protected activity because its system detected and reported his covering of the camera. (Opp. 13:9–15 [asserting "A defendant whose system detects, evaluates, and reports the very conduct that constitutes the protected activity cannot be heard to say it had no knowledge of it. To classify the conduct as a violation, Samsara necessarily registered it and assigned it an evaluative, culpable meaning."].) However, there is no reasonable inference to be drawn from these facts that Samsara was aware of Plaintiff's alleged whistleblowing activity.

Plaintiff's reliance on *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95 to bypass this lack of knowledge is misplaced. In *Reeves*, a supermarket clerk complained to his manager (Demarest) about sexual harassment. Demarest resented the complaints and later weaponized a minor dispute between plaintiff and another employee by initiating a security investigation that resulted in a biased, one-sided report. An innocent corporate decisionmaker (Hollis), who knew nothing of the plaintiff's harassment complaints, relied on that report to fire the clerk. (*Reeves*, at 101–105.)

Safeway argued it could not be liable for retaliation because the decisionmaker in the termination acted without retaliatory intent and was ignorant of the plaintiff's protected activity. The Court of Appeal rejected that defense, holding the employer liable because the supervisor who instigated the investigation and supplied the report, Demarest, harbored retaliatory animus against the plaintiff and used the innocent decisionmaker as a tool to carry out the discharge. (*Id.* at 108–110.)

Reeves applies where the party providing the evaluation or input actually harbors retaliatory animus. Unlike the supervisor in *Reeves*, who knew of the protected activity and set a termination in motion out of spite, Samsara is not alleged to have known anything about Plaintiff's complaints. Similarly, in the *Mobley* case, while the court allowed disparate impact claims to proceed against Workday under an agency theory, it dismissed the disparate treatment claims because the complaint lacked facts showing that Workday acted with discriminatory intent. (*Mobley*, 740 F.Supp.3d at 812-13.) Even under an agency theory, Plaintiff cannot maintain a retaliation claim against Samsara without alleging facts to support that it acted with retaliatory motive.

Plaintiff's allegation on information and belief at paragraph 25 of the complaint that "Defendants" selectively enforced workplace policies against him due to his complaints does cure this pleading defect. A complaint may allege facts on information and belief, but to do so it must allege what basis the information has in whose personal knowledge. (See *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-1159 [A pleading made on information and belief is insufficient if it "merely assert[s] the facts so alleged without alleging such information that lead[s] [the plaintiff] to believe that the allegations are true"].) A plaintiff may support information and belief allegations with a variety of allegations, including hearsay, or reasonable inference from other facts. A plaintiff may not base allegations on suspicion. Because the Court is granting leave to amend, Plaintiff will have the opportunity to allege the factual basis for allegations made on information and belief.

Third Cause of Action for Wrongful Termination in Violation of Public Policy

The third cause of action is for wrongful termination in violation of public policy. (See *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167.) As discussed above, Plaintiff fails to adequately allege the essential elements of a section 1102.5 retaliation claim against Samsara. Because Plaintiff has not sufficiently pleaded the underlying statutory claim, the derivative *Tameny* claim also fails. In light of this determination, the Court need not reach Samsara's additional argument that common law wrongful termination claims may only be stated against employers (Figueroa, in this instance).

Fourth Cause of Action for Violation of Business & Professions Code § 17200

The fourth cause of action alleges violating of the Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., which prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th

163, 180.)

The demurrer to the fourth cause of action for violation of the UCL is sustained on the grounds asserted in the moving papers. Group pleading renders the UCL claim confusing, as the vast majority of the alleged misconduct targets actions attributable to Figueroa. To the extent Plaintiff attempts to base the UCL claim on privacy violations arising from the shared portal, the complaint fails to plead sufficient facts pinning liability on Samsara. In Paragraph 21, Plaintiff alleges that continuous video footage and personal identifying information were accessible to non-supervisory coworkers through a shared portal. (Compl. ¶ 21.) However, Plaintiff appears to attribute this exposure to Figueroa's own administrative choices, alleging that Figueroa's owner left himself logged into the system. (*Ibid.*)

Under heightened pleading standards that apply to UCL claims, collective pleading is insufficient, and Plaintiff fails to allege specific facts showing that Samsara was directly responsible for enabling excessive surveillance, setting overbroad access permissions, or causing the alleged exposure of personal data. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619.)

Plaintiff has leave to amend. The Court will evaluate any amended pleading to determine whether Plaintiff has stated facts establishing UCL liability against Samsara.

Leave to Amend

As this is the first time Plaintiff's allegations against Samsara have been challenged, the Court will grant leave to amend. (See *McDonald v. Superior Court* (1986) 180 Cal.App.3d 297, 303-304 [in the case of an original complaint, it is an abuse of discretion to deny leave to amend unless the complaint is facially incapable of amendment, even where leave to amend is not requested].)

Plaintiff shall have 30 days to amend the complaint. In any amended pleading he files, Plaintiff must specify what each defendant did, instead of grouping them together.

8. 9:00 AM CASE NUMBER: C26-00207
CASE NAME: ANDREI ROMANENKO VS. ROMAN KALNYTSKYI
***HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT / ADVANCED FROM 9/18/2026 PER**
TR OF 7/10/26
FILED BY: KALNYTSKYI, ROMAN
TENTATIVE RULING:

Before the Court is Defendant Roman Kalnytskyi's Motion to Set Aside Default.

Procedural Background

Plaintiff filed the Complaint on January 20, 2026. On March 11, 2026, Defendants filed a Special Motion to Strike Complaint (Anti-SLAPP – Code of Civil Procedure § 425.16).

Thereafter, on March 12, 2026, Plaintiff filed a Proof of Service of Summons indicating Defendant Kalnytskyi was served by substitute service on January 30, 2026. The declaration of mailing indicates that the summons and complaint were mailed to Mr. Kalnytskyi on that same date.